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DHARMA AND THE ARCHITECTURE OF LIBERTY

*Ethical Order and Constitutional Design
in Federal Democracies*



Rohit Viswanath

Marga Darshak:

Dr. M.B. Athreya, Padma Bhushan Awardee

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Dharmo viśvasya jagataḥ pratiṣṭhā
Dharma is the foundation of the entire universe.

Executive Summary

This paper examines the limits of institutional design in sustaining constitutional liberty and interprets that limitation through the classical Indian framework of the *puruṣārthas*: *dharma* (order), *artha* (power), *kāma* (desire), and *mokṣa* (liberation).

Within this framework, the pursuits of power and desire remain sustainable only when disciplined by *dharma*, understood not as the negation of power but as its ethical ordering toward legitimate ends. Building on this foundation, the paper develops *rājadharma* as a structured account of political authority. Rather than presenting *dharma* as sectarian doctrine, the paper draws primarily upon those dimensions of the tradition associated with *sāmānya dharma* and *rājadharma*, interpreting them as a civilisational grammar through which power, responsibility, and restraint may be aligned in the service of constitutional order.

The analysis identifies a structural vulnerability: constitutional architectures can distribute power, but they cannot self-generate the ethical disciplines required to prevent their own subversion. When *artha* becomes detached from ethical order, institutional mechanisms may be redirected toward partisan *kāma*. The hollowing out of specialised state capacity may likewise be understood as a failure of the fiduciary obligations borne by those entrusted with institutional stewardship, risking a return to *matsya-nyāya*, the law of the fish, where the collapse of restraint allows power to become predatory.

The argument contends that the endurance of free societies depends upon the relationship between external institutional discipline and internal forms of self-discipline, responsibility, and fiduciary stewardship. Constitutional equilibrium emerges not solely from procedural design, but from the ethical and cultural conditions shaping the conduct of citizens and office-holders alike.

To operationalise these insights, *dharma* is presented as an ethical grammar of sustainability: providing the principles that make liberty intelligible without dictating the content of life. Finally, the paper suggests that such disciplines are cultivated through embodied cultural practices, where habits of restraint, judgment, and self-mastery operate as conditions for civilisational continuity and constitutional resilience.

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This is a working paper. Comments and suggestions are welcome and may be addressed to:

natyasastra.gurukulam@gmail.com

I. Liberty and the Limits of Institutional Design

Constitutional democracies are founded upon the insight that political power requires suitable restraint. The Constitution of the United States embodies this insight through a carefully balanced architecture of separation of powers, federalism, and institutional checks designed to prevent the concentration of authority. By distributing power across multiple institutions and jurisdictions, the American constitutional system sought to secure liberty without relying solely upon the virtue of rulers.

The Framers of the Constitution were acutely aware of the dangers of unrestrained power. James Madison observed that the accumulation of legislative, executive, and judicial authority in the same hands constitutes ‘the very definition of tyranny.’¹ The solution, articulated in *The Federalist Papers*, was an institutional structure in which ambition would counteract ambition and competing centres of authority would restrain one another.

Yet the architects of the American republic also recognised that constitutional design alone could not guarantee the stability of liberty. Madison warned that ‘enlightened statesmen will not always be at the helm.’² Alexis de Tocqueville later concluded that the durability of American democracy depended not only upon its laws but upon the habits, beliefs, and civic associations of its citizens.³

These observations reveal a structural limitation within constitutional design: political equilibrium is not merely an institutional achievement but also a moral one. Constitutional systems can regulate and distribute power, but they cannot by themselves generate the ethical motivations necessary for their own long-term preservation. Procedural structures may constrain conduct externally, yet the stability of liberty ultimately depends upon whether the ambitions, desires,

¹ James Madison, “Federalist No. 47,” in *The Federalist Papers*, ed. Clinton Rossiter (New York: Signet Classics, 2003).

² James Madison, “Federalist No. 10,” in *The Federalist Papers*, ed. Clinton Rossiter (New York: Signet Classics, 2003).

³ Alexis de Tocqueville, *Democracy in America*, trans. Harvey Mansfield and Delba Winthrop (Chicago: University of Chicago Press, 2000).

and orientations operating within those structures remain subject to forms of internal restraint. The crisis confronting many constitutional democracies today is therefore not only institutional but motivational.

Political theory has long recognised that constitutional orders depend upon forms of civic virtue, moral restraint, and public trust that cannot themselves be fully legislated into existence. This concern is not unique to non-Western traditions. Contemporary democratic theorists have likewise argued that constitutional procedures depend upon civic dispositions that institutions alone cannot generate. Nadia Urbinati, for example, has emphasised the importance of democratic judgment, representative ethics, and civic culture in sustaining constitutional orders beyond their formal structures. The present argument therefore seeks not to reject modern constitutional theory but to place it in dialogue with classical Indian reflections on the ethical formation of political actors.⁴

Yet modern constitutional discourse often struggles to explain how such dispositions are cultivated, sustained, or transmitted across generations once metaphysical and civilisational frameworks lose authority within public life. It is precisely at this point that classical Indian frameworks become analytically relevant, not as theological alternatives to constitutionalism, but as systematic reflections on how power, desire, restraint, and ethical formation may be held in durable equilibrium.

This limitation is best decoded via the *puruṣārtha* framework: *dharma*, *artha*, *kāma*, and *mokṣa*. Within this framework, *artha* refers to the pursuit of power, wealth, and institutional capability, while *kāma* encompasses desire, preference, and experiential fulfilment. These pursuits are legitimate dimensions of human life, yet they are not self-regulating. They must remain disciplined by *dharma*, the principle of ethical order, proportion, and restraint.

Beyond these lies *mokṣa*, the highest horizon of human flourishing: the realisation that human dignity does not depend upon the accumulation of power,

⁴ Nadia Urbinati, *Democracy Disfigured: Opinion, Truth, and the People* (Cambridge, MA: Harvard University Press, 2014).

possession, or status. Within this hierarchy, *artha* and *kāma* remain legitimate yet subordinate pursuits governed by *dharma* and oriented toward deeper forms of freedom.

Modern political discourse often equates liberty with the unrestricted pursuit of prosperity or preference. When the legitimate pursuits of power and desire are mistaken for liberty itself, political institutions increasingly become mechanisms for arbitrating competing interests rather than sustaining disciplined freedom.

Institutions regulate the distribution of power, but ethical order disciplines the purposes toward which that power is directed. Modern constitutional systems of nation-states primarily regulate competing interests within political communities through institutional arrangements governing representation, adjudication, and the distribution of authority. *Dharmic* frameworks additionally ask whether the desires, ambitions, and orientations generating those conflicts have themselves been ethically ordered. The question is therefore not merely how institutions restrain power, but whether societies cultivate disciplines capable of moderating the impulses institutions are asked to regulate.

This paper advances a dual claim: first, that constitutional design contains an internal vulnerability whereby its own mechanisms may be used to subvert the equilibrium they are intended to preserve; and second, that classical Indian political thought, through the concept of *rājadharmā*, offers a systematic account of how such vulnerability may be ethically and institutionally disciplined.

The *dharmic* framework becomes relevant in this context not as sectarian doctrine, but as a historically developed civilisational vocabulary for understanding how power, desire, restraint, and responsibility may be held in sustainable equilibrium across both institutions and persons.

A preliminary clarification concerning *dharma* is necessary. Classical Indian thought employs the term *dharma* in multiple senses. It may refer to role-specific obligations associated with particular stations, relationships, and circumstances, but it may also denote broader ethical principles that sustain social order and human flourishing. The present paper is concerned primarily with this latter

dimension, often described within the tradition as *Sāmānya Dharma*: general norms such as truthfulness, restraint, responsibility, reciprocity, and fidelity to obligation that transcend particular social roles. The argument therefore does not treat *dharma* as a singular or universally codified doctrine. Rather, it draws upon those dimensions of *dharma* most directly concerned with the ethical ordering of power and the preservation of social and political equilibrium. In this respect, the discussion that follows is situated at the intersection of *Sāmānya Dharma* and *Rājadharmā*, examining how traditions of ethical restraint and fiduciary responsibility may illuminate enduring challenges of constitutional governance.

II. Constitutional Architecture and the Presidency

The American Constitution represents one of the most sophisticated institutional designs in modern political history. Its architecture distributes power across three branches of government while simultaneously dividing authority between federal and state jurisdictions. This system of checks and balances was intended to prevent the emergence of concentrated authority and to ensure that no single institution could dominate the political order.

The Framers did not seek to eliminate ambition but to channelise it through institutional rivalry; they designed a system of competitive *artha* to substitute for absent virtue. As Madison wrote, the system was designed so that ‘ambition must be made to counteract ambition.’⁵

Over more than two centuries, this design has demonstrated remarkable durability. The American constitutional experiment has endured through social transformation, economic expansion, and geopolitical upheaval while maintaining institutional continuity. It illustrates the stabilising potential of distributed authority and procedural restraint.

A particularly important behavioural variable within this architecture is the presidency. The constitutional design grants the executive significant

⁵ James Madison, Federalist No. 51.

discretionary authority, especially in areas such as foreign policy, emergency powers, and administrative governance. At different moments in American history, presidents have exercised this authority with varying degrees of restraint. George Washington established early norms of constitutional self-limitation, while later administrations expanded executive capacity in response to war, economic crisis, or national emergency. Such expansions have sometimes strengthened institutional coordination but have also periodically raised concerns about executive overreach. The Presidency therefore illustrates how constitutional equilibrium depends not only on formal legal limits but also on traditions of fiduciary restraint in the exercise of power.

In this light, the distinction between a 'unitary' executive and a 'fiduciary' executive becomes central. While the former emphasises *artha*, the optimisation of raw executive efficiency and command, the latter aligns with the *dhārmic* ideal of the ruler as a trustee. When the Presidency is viewed through a purely procedural lens, it risks becoming an instrument of personal or partisan *kāma* (desire). A *dhārmic* refinement of the office suggests that executive discretion is not a 'right' of the victor, but a duty of stewardship toward the institutional memory and administrative integrity of the state.

Yet the logic of this system also reveals its limits. Constitutional mechanisms assume that ambition will remain bounded by norms of restraint and institutional loyalty. When political actors manipulate procedural rules primarily for partisan advantage, the equilibrium created by constitutional design can gradually weaken.

Increasing polarisation, procedural brinkmanship, and the expansion of executive authority illustrate how constitutional mechanisms may be stretched without formally violating legal boundaries.

If human desire remains conceptually unbounded, institutions must continually expand to regulate the conflicts it produces. Political institutions thus become increasingly procedural mechanisms for managing competing interests. From the *dhārmic* perspective, this difficulty arises because the pursuits of *artha* and

kāma have become detached from *dharma*. Without such discipline, constitutional systems must rely ever more heavily on institutional regulation to maintain equilibrium that moral philosophy once helped sustain.

III. Institutional Drift

Even where constitutional structures remain formally intact, the practical functioning of institutions may evolve in ways that gradually alter the balance of governance. Institutional drift, the erosion of state capacity through administrative shifts rather than formal amendment, may be understood as a failure of the *dhārmic* obligations borne by those entrusted with the stewardship of institutions.

Recent debates in the United States concerning proposals to significantly reduce or dismantle elements of the federal administrative apparatus illustrate how such drift may occur. Initiatives aimed at closing long-standing agencies, curtailing regulatory bodies, or installing leadership committed to weakening or dismantling existing mandates have raised questions about the resilience of administrative governance. While such actions may be undertaken through lawful executive authority, their long-term institutional consequences can be substantial. Agencies that have accumulated specialised expertise and technical capacity over decades may lose institutional memory, professional continuity, and operational capability. Rebuilding such structures, once disrupted, frequently requires considerable time, financial cost, and political consensus.

Institutional drift illustrates this structural vulnerability within constitutional systems: formal legal design cannot by itself ensure the preservation of institutional capability. The stability of governance ultimately depends upon traditions of stewardship, an insight that points beyond institutional design toward the ethical disciplines explored in the sections that follow. Institutions may continue functioning procedurally even while the ethical dispositions sustaining them gradually erode. Constitutional decline therefore need not appear first as overt collapse; it may emerge incrementally through the

normalisation of strategically self-interested conduct operating within formally lawful structures.

This erosion may be understood as a failure of *rājadharmā* on the part of those entrusted with preserving institutional capacity. Classical Indian political thought generally locates *dharma* in the conduct of agents rather than in institutions themselves.⁶ The argument advanced here is therefore not that institutions possess *dharma* independently, but that office-holders bear fiduciary obligations toward the maintenance of the institutional capacities upon which public order depends. When such obligations are subordinated to short-term partisan advantage, institutional capability may gradually erode despite continued formal legality. In this sense, institutional drift is not merely a political shift but a failure of stewardship in the exercise of public authority.

If constitutional systems cannot by themselves generate the ethical disciplines necessary for their own preservation, the question that follows is how such disciplines are historically cultivated, transmitted, and sustained. It is precisely at this point that the classical Indian concept of *rājadharmā* becomes analytically significant. Rather than treating political order as a purely procedural arrangement, the *dharmic* tradition developed a multi-layered account of governance in which institutional structure, ethical restraint, judgment, and self-mastery operate together as conditions for political equilibrium. The relevance of *rājadharmā* in this context therefore lies not in the recovery of premodern authority structures, but in its systematic attempt to address a problem that modern constitutional theory continues to confront: how power may remain ethically disciplined even where formal legality alone proves insufficient.

IV. Rājadharmā: Structure and Foundations

Within the classical Indian tradition, this broader problem of ethical and political restraint was addressed through the concept of *rājadharmā*, understood both as

⁶ Patrick Olivelle, *King, Governance, and Law in Ancient India: Kauṭilya's Arthaśāstra* (Oxford: Oxford University Press, 2013), 71–86.

rājasya dharmah (the duty or ethical obligation of the ruler) and as a wider principle governing the legitimate exercise of political authority.

It is important to note that classical sources generally locate *Rājadharma* in the ruler and in the exercise of authority rather than in political institutions conceived as autonomous entities. The present analysis therefore employs institutions primarily as the contemporary arena through which the responsibilities of governance are discharged. References throughout this paper to constitutional or institutional obligations should accordingly be understood as obligations borne by office-holders acting within institutional structures.

Rājadharma operates not as a singular principle, but as a structured framework operating across multiple interrelated dimensions of political and ethical life. The tradition frequently illustrates it not only through abstract principles but through embodied models of governance, in which normative ideals are expressed through narrative and exemplary rulership. Among these, the ideal of *Rāma Rājyam*, as depicted in the *Vālmīki Rāmāyaṇa*, remains the most enduring.⁷

This civilisational conception has also informed modern political imagination. Mahatma Gandhi repeatedly invoked the ideal of *Rāma Rājyam* not as a theological construct, but as a vision of governance grounded in justice, restraint, and the welfare of all. In this sense, the classical articulation of *rājadharma* has continued to operate as a normative reference point in modern reflections on political order.⁸

The Mahatma's invocation of *Rāma Rājyam* was not merely symbolic but structurally significant. He conceived it as a form of governance grounded in decentralised moral authority, where political power remained accountable to ethical self-restraint and the welfare of the weakest. In this sense, *Rāma Rājyam* functions not as an idealised past, but as a continuing political imagination in which authority remains disciplined by moral responsibility.

⁷ Vālmīki, *Śrīmad Vālmīki Rāmāyaṇa*, Ayodhyākāṇḍa, Kacchit Sarga.

⁸ M. K. Gandhi, *Hind Swaraj and Other Writings*, ed. Anthony J. Parel (Cambridge: Cambridge University Press, 1997)

Within this conception, the legitimacy of rule rests not merely upon legal authority, but upon the ruler's capacity to sustain harmony across governance, society, and moral order. The celebrated *Kacchit Sarga* presents a vision of kingship grounded in vigilance, accountability, and restraint, where the ruler's responsibility extends across the full spectrum of governance and public welfare.⁹ Rāma's rule is thus portrayed not as an idealisation of power, but as its disciplined exercise, where institutional functioning, ethical conduct, and public welfare operate in alignment. Accordingly, *Rāma Rājyam* serves as a civilisational archetype of governance ordered by *dharma*, thereby offering a concrete foundation for analysing the structure of *rājadharma* in systematic terms.

When examined across classical sources including the *Mahābhārata*, *Arthaśāstra*, and the *Dharmaśāstra* corpus, this conception resolves into a structured and multi-layered system governing the exercise of political authority.¹⁰

This framework may be understood through four interrelated dimensions that together define the conditions under which political authority remains stable, legitimate, and self-regulating. These may be analytically distinguished as institutional (ordering power), ethical (disciplining intent), prudential (responding to crisis), and interior (self-mastery of the ruler), though in practice they operate as an integrated whole.

1. Institutional Dharma: Order and Capacity

At a more granular level, the *Kacchit Sarga* structures governance through a sequence of interrogatives addressed to the ruler, spanning administrative accountability, fiscal prudence, military preparedness, and public welfare.¹¹

This suggests that *rājadharma* requires not merely moral intent but institutional competence and vigilance. The ruler is expected to ensure that the machinery of governance functions in a disciplined and coordinated manner. This dimension is

⁹ Ibid.

¹⁰ P. V. Kane, *History of Dharmaśāstra*, 5 vols. (Poona: Bhandarkar Oriental Research Institute, 1930–1962).

¹¹ Vālmīki, *Rāmāyaṇa*, Ayodhyākāṇḍa.

further elaborated in the *Arthaśāstra*, where statecraft is treated as a systematic science of administration, surveillance, and public finance.¹²

In modern constitutional terms, this corresponds to the operational integrity of institutions.

This conception extends beyond moral exhortation to include detailed systems of governance, including revenue, intelligence, judicial process, and administrative oversight, indicating that ethical rule requires durable institutional capacity. The classical tradition thus recognises that ethical governance requires not only virtuous intent but durable systems capable of sustaining order over time.

2. Ethical Dharma: Normative Restraint

Advisory traditions such as *Vidura Nīti* and the *Dharmaśāstra* literature systematise the ethical expectations placed upon rulers.¹³ These include truthfulness, self-restraint, impartiality, and responsibility toward the welfare of subjects.

A striking illustration appears in the conduct of Bharata in the *Rāmāyaṇa*. When entrusted with the governance of Ayodhyā during Rāma's exile, Bharata declines to assume kingship in his own right, instead governing as a regent in fiduciary trust.¹⁴ This episode underscores that legitimate authority is not defined merely by possession of power, but by the restraint and responsibility with which it is exercised.

These traditions emphasise that power, even when legally sanctioned, must remain ethically bounded. Authority is legitimate not merely because it is lawful, but because it is exercised in accordance with normative restraint.¹⁵

This dimension ensures that *artha* (power) remains governed by *dharma*.

¹² Kauṭilya, *Arthaśāstra*, trans. R. Shamasastri (Mysore: Government Press, 1915).

¹³ *The Mahābhārata*, trans. J. A. B. van Buitenen (Chicago: University of Chicago Press, 1973–1978), esp. Śāntiparvan; see also discussions of Vidura Nīti therein.

¹⁴ Vālmīki, *Rāmāyaṇa*, Ayodhyākāṇḍa

¹⁵ Shamasastri, *Arthaśāstra*.

The notion of restraint employed throughout this paper should not be understood as the mere reduction or abandonment of power. Rather, restraint refers to the disciplined regulation of the purposes toward which power is directed. Power remains necessary for governance; the question is whether it is exercised within limits imposed by fiduciary responsibility, public welfare, and ethical judgment. In this sense, restraint concerns the ethical ordering of power rather than its negation.

3. Crisis Dharma: Judgment under Conflict

The *Mahābhārata* presents governance not as a realm of ideal conditions, but as one frequently marked by *dharma-saṅkaṭa*, situations in which duties conflict and clear moral resolution is elusive.¹⁶

The contrast between Duryodhana and Yudhiṣṭhira illustrates this tension with particular clarity. Where Duryodhana represents the assertion of power unrestrained by *dharma*, Yudhiṣṭhira embodies the burden of moral hesitation and reflective judgment under conditions of conflict. The epic thus frames governance not as the mechanical application of rules, but as the difficult exercise of discernment under ethical strain.¹⁷

The contrast also illustrates a deeper structural insight: the failure of *dharma* is not always the absence of power, but the absence of restraint in its exercise. Where power operates without ethical discipline, it generates instability even when institutionally sanctioned.

Episodes involving figures such as Bhīṣma, Vidura, and Yudhiṣṭhira illustrate that *rājadharmā* must operate under conditions of uncertainty, competing obligations, and political necessity.¹⁸

This dimension highlights that governance requires judgment, prioritisation, and the capacity to act under ethical tension, rather than reliance on rule-bound formalism alone.

¹⁶ van Buitenen, *Mahābhārata*, Śāntiparvan.

¹⁷ Ibid.

¹⁸ Ibid.

4. Inner Dharma: Self-Mastery and Authority

Philosophical texts such as the *Yoga Vasiṣṭha* extend the concept of governance inward, emphasising mastery over desire, attachment, and ego.¹⁹

Within this framework, instability in political order is ultimately linked to the undisciplined impulses of the ruler. The regulation of *kāma* (desire) and the responsible pursuit of *artha* (power) therefore begin with internal discipline.

This dimension aligns closely with the broader *puruṣārtha* framework, reinforcing the idea that external order depends upon inner restraint.

Within the broader *puruṣārtha* framework, the orientation toward *mokṣa* further deepens this discipline. By situating fulfilment beyond the accumulation of power and desire, it introduces a limiting horizon into political conduct. The aspiration for *mokṣa* thus operates indirectly but powerfully as a regulator of ambition, tempering the impulses that might otherwise destabilise the ethical exercise of authority.²⁰

Synthesis: Rājadharmā as Disciplined Equilibrium

In summary, *Rājadharmā* functions as a four-fold equilibrium: Institutional (capacity), Ethical (trusteeship), Prudential (discernment), and Interior (self-mastery). Stability arises not from the presence of power, but from the alignment of these four vectors.

This framework ensures that the pursuit of power (*artha*) and desire (*kāma*) remains ordered by *dharma*, thereby sustaining balance within the political system.

In this sense, *rājadharmā* may be understood as a classical articulation of disciplined equilibrium, in which stability arises not from institutional design alone, but from the alignment of structures, norms, judgment, and character. In contemporary constitutional terms, this suggests that the endurance of

¹⁹ *The Yoga Vāsiṣṭha of Vālmīki*, trans. Swami Venkatesananda (Albany: SUNY Press, 1993).

²⁰ Vālmīki, *Yoga Vāsiṣṭha*, trans. Venkatesananda.

institutional systems, including those of modern democracies, ultimately depends upon the ethical and behavioural disciplines that operate alongside formal structures of governance.

The conception of *rājadharma* as disciplined equilibrium also clarifies a deeper structural vulnerability within constitutional systems. Where the ethical and normative disciplines governing the exercise of power weaken, institutional arrangements alone may prove insufficient to preserve equilibrium. In such circumstances, the internal mechanisms of constitutional systems may themselves become instruments through which imbalance is produced rather than restrained.

V. Gödel's Loophole and Constitutional Self-Subversion

A striking illustration of this structural vulnerability appears in the reflections of the mathematician Kurt Gödel. While preparing for his United States citizenship examination in 1947, Gödel reportedly concluded that the Constitution contained a theoretical pathway through which democratic institutions could legally transform themselves into a dictatorship.²¹ The analogy here is not formal but structural: just as no formal system can guarantee its own completeness, no constitutional system can fully secure the ethical conditions of its own preservation.

The underlying insight is widely recognised in constitutional theory: a legal system may contain within itself the mechanisms of its own subversion. Constitutional procedures designed for amendment, interpretation, and adaptation can under certain conditions be used to alter the character of the constitutional order itself.

The significance of this observation lies not in a specific procedural flaw but in a broader principle: no constitutional design can entirely prevent actors from exploiting the internal rules of the system.

²¹ John W. Dawson Jr., *Logical Dilemmas: The Life and Work of Kurt Gödel* (Wellesley, MA: A. K. Peters, 1997).

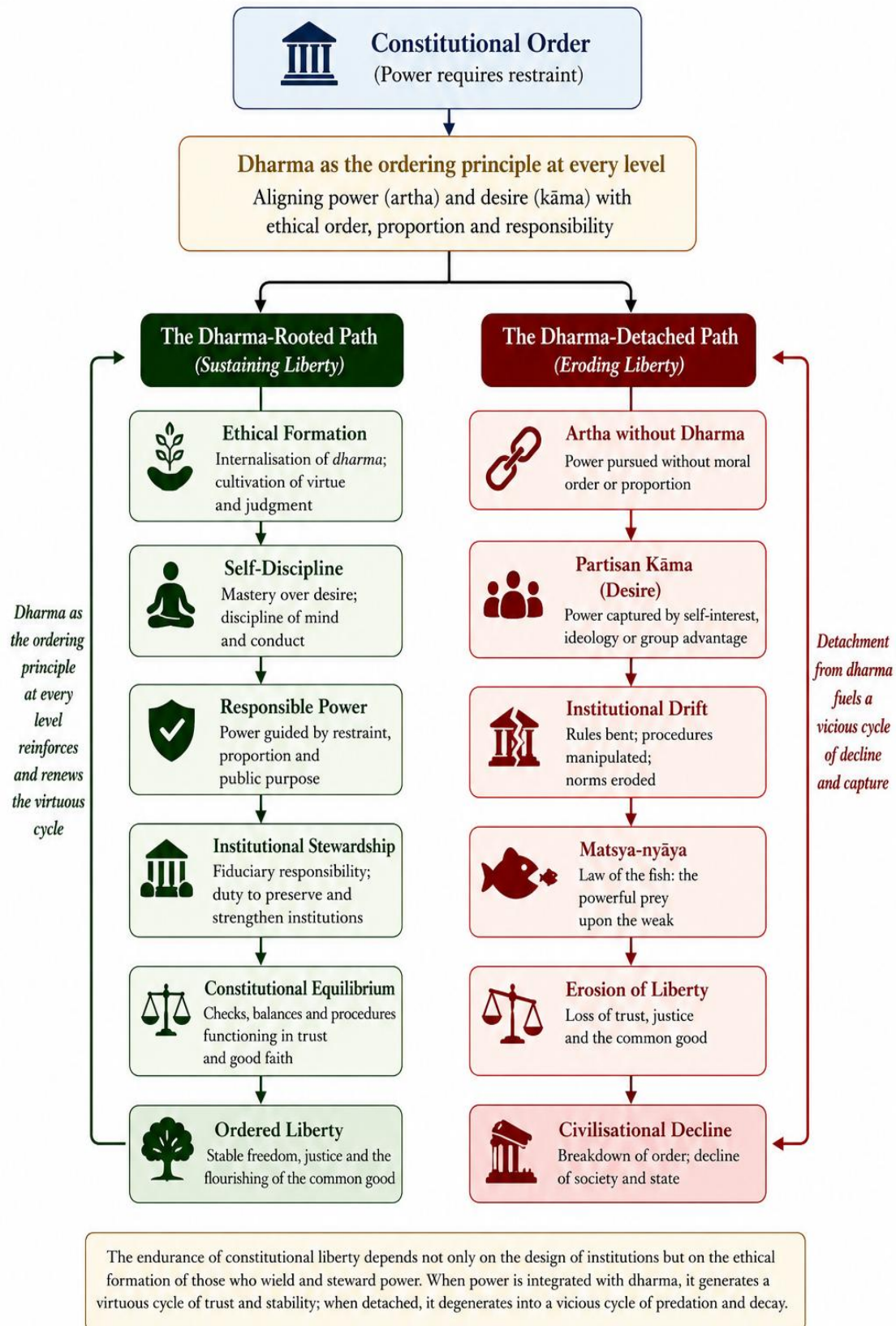
From a *dharmic* perspective, this paradox reinforces the necessity of a normative order operating beyond institutional mechanics. Structures can distribute authority, but the stability of those structures ultimately depends upon the ethical discipline with which power is exercised.

A related distinction may be drawn between discipline and self-discipline. Constitutional systems can impose discipline through institutional constraints, legal rules, and procedural safeguards. Yet the long-term stability of political order depends equally upon forms of self-discipline that arise within individuals and communities themselves. The ethical regulation of conduct, the willingness to exercise suitable restraint in the pursuit of power, and the capacity to subordinate immediate interests to broader obligations cannot be fully produced through external mechanisms alone. Durable constitutional orders therefore rest upon an interaction between institutional discipline and the internal discipline of political actors and citizens.

Gödel's insight functions as a *dhārmic* warning: a system of pure *artha* (rules and power) without a grounding in *dharma* (normative restraint) is mathematically incapable of closing every door to its own destruction. The 'loophole' is not a failure of the Framers' logic, but a testament to the fact that constitutional equilibrium is a 'living' discipline. It requires an extra-legal commitment to self-limitation that the text itself cannot compel, but without which the text becomes a map to its own subversion.

The argument developed thus far may be synthesised as a model of constitutional sustainability. When the exercise of power remains ordered by *dharma*, it generates a virtuous cycle of ethical formation, institutional stewardship, and ordered liberty. When power becomes detached from *dharma*, it initiates a self-reinforcing cycle of institutional drift, predation, and constitutional decline. Figure 1 summarises this dynamic.

Figure 1
Ethical Formation and Constitutional Sustainability
Contrasting the Dharmic and Dharma-Detached Pathways of Political Order



VI. Dharma and the Ordering of Human Purposes

To understand why *dharma* functions in this paper not merely as moral instruction but as a principle of constitutional and civilisational equilibrium, it is necessary to situate the concept within the broader intellectual framework from which it emerges. In classical Indian thought, *dharma* is understood in relation to the deeper conception of order known as *rta*. The universe is not viewed as a chaotic aggregation of forces but as an intelligible and relational whole in which persons, institutions, and forms of life occupy interdependent positions. *Dharma* therefore denotes the appropriate ordering of conduct within that larger framework: the responsibilities through which individuals and institutions sustain ethical, social, and political equilibrium.

At its broadest level, *dharma* does not refer simply to morality, religion, or legal obligation in the modern sense. Nor does it function as a singular codified doctrine. Rather, *dharma* denotes the principles through which differentiated forms of life, authority, and responsibility remain aligned within a sustaining order.

Within this framework, freedom is not conceived primarily as the absence of restraint, but as the maintenance of proportion between competing aims, powers, and obligations. *Dharma* therefore operates relationally and contextually: the responsibilities appropriate to a judge differ from those of a ruler, a teacher, or a householder, yet each remains accountable to a larger order sustaining social and ethical equilibrium.

This relational character distinguishes *dharmic* reasoning from purely procedural or rights-based frameworks. Rather than beginning from abstract universality alone, *dharma* asks whether conduct sustains or destabilises the conditions necessary for continuity, trust, reciprocity, and shared flourishing within an interconnected order.

At the same time, *dharma* is not rigidly reducible to fixed hierarchies. Classical Indian traditions themselves preserve extensive debates concerning the

interpretation of duty under changing circumstances, conflicting obligations, and conditions of injustice. *Dharma* therefore functions less as an inflexible rule than as an ongoing discipline of judgment concerned with preserving equilibrium under historically variable conditions.

The jurist and scholar Sir John Woodroffe described *dharma* in precisely these terms, observing that it is not merely an externally imposed rule but ‘the nature of things,’ the principle through which the underlying order of the cosmos expresses itself in ethical and social life.²²

When applied to political organisation, this insight suggests that stable institutions arise not solely from procedural design but from the alignment of authority, responsibility, and ethical restraint within the broader order of society. When the domains of power and desire operate without such discipline, they may generate excessive competition, institutional capture, and forms of moral disorientation that gradually erode the equilibrium they initially produce.

This deepens the earlier observation that constitutional systems, in the absence of ethical ordering, risk shifting from sustaining equilibrium to merely managing competing claims.

The *puruṣārtha* framework addresses this problem by situating political and material pursuits within a larger hierarchy of human ends. Beyond *artha* and *kāma* lies *mokṣa*, the highest horizon of human flourishing: liberation from compulsive attachment to power, desire, and the cycles of acquisition that ordinarily structure social life. Although *mokṣa* lies largely beyond the direct domain of political institutions, its presence within the hierarchy of human purposes reshapes the meaning of liberty itself. In political terms, *mokṣa* functions less as a constitutional objective than as a civilisational limit upon the absolutisation of material acquisition, domination, and possessive individualism.

Liberty, within this framework, does not consist in the unlimited pursuit of preference but emerges from the disciplined ordering of life in which power and

²² Sir John Woodroffe, *Śakti and Śākta: Essays and Addresses on the Śākta Tantra Śāstra* (Madras: Ganesh & Co., 1918).

aspiration remain governed by ethical responsibility. In this sense, freedom detached from disciplines of self-limitation risks becoming destabilising both psychologically and politically.

Where desire ceases to recognise any limiting horizon beyond acquisition, assertion, or preference, institutions are placed under continuous pressure to mediate expanding claims they cannot sustainably reconcile through procedure alone. This pressure reveals the '*Kāma-Artha* Trap': when a society recognises no higher end than the satisfaction of preference (*kāma*) and the accumulation of means (*artha*), the legal system is forced into an infinite loop of regulation. *Dharma* introduces an internal veto through which both citizens and institutions recognise that legality alone does not exhaust legitimacy. The voluntary restraint of power, even where its exercise remains formally permissible, becomes essential to the preservation of constitutional and civilisational equilibrium..

VII. Pluralism and the Civilisational Grammar of Dharma

In plural constitutional societies, *dharma* must be understood carefully. It does not imply the imposition of a particular religious doctrine or cultural orthodoxy. Rather, it functions as a structural principle describing the ethical ordering required for the stable exercise of power and the responsible pursuit of desire.

Comparable insights appear across civilisational traditions. Aristotelian political philosophy emphasised moderation and civic virtue as conditions for the stability of republican institutions.²³ Confucian traditions likewise stressed moral cultivation and the ethical responsibilities associated with authority. Contemporary philosophers have similarly observed that modern societies struggle to sustain shared moral frameworks capable of guiding public life.²⁴

Within this broader perspective, the *dhārmic* framework may be understood not as a sectarian doctrine but as a civilisational grammar through which the

²³ Aristotle, *Politics*, trans. C. D. C. Reeve (Indianapolis: Hackett Publishing, 1998).

²⁴ Alasdair MacIntyre, *After Virtue* (Notre Dame: University of Notre Dame Press, 1981).

principle of disciplined freedom can be articulated across diverse cultural contexts. From this perspective, *dhārmic* traditions may also be understood as civilisational technologies of restraint: historically evolved systems through which societies cultivated dispositions of responsibility, proportion, self-limitation, and ethical accountability across generations. Their significance lies not primarily in theological authority, but in their capacity to shape the behavioural and moral conditions upon which stable forms of collective life depend.

VIII. Internal Tensions and Contestation

Classical Indian traditions preserve extensive disagreement regarding the nature, scope, and application of *dharma*. Distinctions between *sāmānya dharma* (general ethical obligations), *svadharma* (situated duty), *varṇa dharma* (socially differentiated obligation), and *āpad-dharma* (ethics under conditions of crisis) reveal that the tradition recognised the instability and contextuality of moral judgment rather than presenting a single uncontested doctrine.

These tensions remain particularly significant in relation to caste, gender, and social inequality. Any attempt to retrieve *dhārmic* frameworks within contemporary constitutional discourse must therefore distinguish between *dharma* as a principle of ethical restraint and historical social arrangements that have at times claimed its authority while simultaneously reproducing forms of domination or exclusion.

For this reason, the present argument does not propose a return to premodern social forms, nor the constitutionalisation of any religious doctrine. Rather, it asks whether the broader civilisational insight underlying dharmic traditions, namely, that institutional order depends upon normative restraints shaping the exercise of power and desire, may still illuminate structural problems confronting modern constitutional systems.

American history also demonstrates that ethical recalibration can emerge from civic mobilisation outside formal authority structures. Movements such as the

abolitionist campaign against slavery, the civil rights movement of the twentieth century, and other social reform efforts sought to realign public institutions with the moral commitments embedded in constitutional principles. In this sense, civil society has frequently functioned as a corrective mechanism when institutional practice diverges from normative ideals. Such episodes illustrate that the discipline of power within constitutional democracies often arises not only from legal structures but also from ethical pressures generated within the broader civic sphere.

IX. Operationalising Dharmic Restraint

Recognising the role of ethical restraint in constitutional systems does not require the formal incorporation of philosophical doctrines into constitutional law. The ordering described here operates primarily through civic practices, institutional norms, and cultural expectations that shape how power and desire are pursued within society.

Contemporary governance theory increasingly understands political systems as complex adaptive orders in which stability emerges through the interaction of institutional constraints, feedback mechanisms, and behavioural norms. Constitutional democracies therefore rely not only on formal rules but also on stabilising cultural expectations. Institutions may adjudicate disputes and regulate competition, but they cannot by themselves generate solidarity, restraint, or shared orientation toward the common good. Where such norms of restraint weaken, constitutional systems risk becoming mechanisms for the perpetual management of conflict rather than frameworks for sustaining civilisational equilibrium.

The *dhārmic* ordering of human purposes complements constitutional design by moderating the ambitions and desires that institutions alone cannot fully regulate.

Educational institutions, voluntary associations, and civic organisations cultivate dispositions of responsibility and cooperation. A free and critical press plays a

particularly significant role within this ecosystem, functioning as an external instrument of accountability that scrutinises power and reinforces norms of public responsibility. In modern constitutional systems, such institutions serve as important complements to formal structures of governance, sustaining the ethical vigilance upon which equilibrium depends.²⁵

Such disciplines are sustained not only through formal institutions, but also through cultural forms that shape habits of perception, conduct, and self-regulation over time.

Within civilisational traditions, however, ethical restraint has not been transmitted solely through formal instruction or institutional regulation. It has also been cultivated through embodied cultural practices that discipline perception, affect, attention, and conduct across generations. In the Indian context, *nāṭya* occupies a particularly significant place within this broader ecology of ethical formation.

The disciplines underlying performance, including rhythm, coordination, restraint, responsiveness, and interior concentration, cultivate forms of self-regulation that are simultaneously aesthetic, ethical, and social. Such practices do not merely communicate normative principles abstractly; they habituate dispositions necessary for sustaining alignment between individual expression and collective order.

From this perspective, *nāṭya* may be understood not simply as artistic representation, but as one among several civilisational mechanisms through which disciplines of equilibrium are experientially reproduced across generations.

Norms governing public office, such as restraint in the use of executive authority and respect for institutional autonomy, reinforce constitutional equilibrium. Economic institutions likewise contribute through traditions of fiduciary responsibility, long-term stewardship, and philanthropic custodianship. Modern

²⁵ Tocqueville, *Democracy in America*.

constitutional systems already rely upon analogous practices of ethical formation. Traditions of judicial ethics, civil service neutrality, military non-partisanship, fiduciary stewardship within public administration, and norms governing peaceful transfers of power all operate as extra-procedural disciplines sustaining institutional trust. Such practices illustrate that constitutional equilibrium depends not solely upon formal legality, but upon cultivated habits of restraint embedded within institutional and civic culture.

X. Federal Democracies in Comparative Perspective

The experience of other federal democracies further illustrates the relationship between institutional design and the ethical discipline required to sustain constitutional equilibrium. Federal systems distribute authority across multiple levels of government in order to balance political power, encourage regional representation, and prevent excessive centralisation. Yet the effective functioning of such arrangements depends not only upon constitutional allocation of powers but also upon traditions of cooperative restraint between institutions.

India provides a particularly instructive example. The Indian Constitution incorporates familiar mechanisms of modern constitutionalism, including federal division of powers, judicial review, and fundamental rights. At the same time, the document recognises broader normative aspirations through its Directive Principles of State Policy. Although these provisions are not directly enforceable by courts, they acknowledge that constitutional governance must be guided by ethical commitments extending beyond procedural legality.

Other federal democracies demonstrate similar patterns. Canada's constitutional order relies heavily upon conventions of cooperative federalism that moderate tensions between national and provincial authority. Australia's federal system likewise depends upon negotiated arrangements and institutional respect between Commonwealth and state governments. The European Union represents an even more complex form of multi-level governance, where supranational institutions operate alongside national sovereignty through

continuous processes of negotiation and coordination. These trajectories also illustrate that federal systems are not static but evolve over time, sometimes toward greater centralisation and at other times toward decentralisation.

Across these diverse systems, a consistent pattern emerges. The durability of federal constitutional arrangements depends not only upon the formal distribution of powers but also upon shared norms that moderate the pursuit of institutional advantage. When such norms weaken, tensions between competing centres of authority may intensify, producing institutional friction and political instability.

These patterns reflect a broader civilisational principle within the dhārmic framework. Distributed political authority can sustain liberty only when the pursuit of artha, power and institutional capacity, remains governed by a normative commitment to proportion, restraint, and responsibility. Where such discipline is present, federal systems generate balance and pluralism. Where it weakens, institutional competition risks undermining the equilibrium those systems were designed to preserve.

These principles are not only articulated in philosophical or political texts but are also encoded and transmitted through embodied traditions, where these disciplines are cultivated as lived experience.

XI. Ethical Foundations of Constitutional Equilibrium

The American constitutional experiment demonstrates the remarkable capacity of institutional design to distribute power and preserve liberty. Yet its experience also reveals a deeper truth: constitutional systems can restrain authority, but they cannot by themselves discipline the impulses that generate conflict and excess.

The concept of *Dharma Rājya* does not replace constitutional democracy. Rather, it clarifies how constitutional institutions may remain aligned with a broader moral order capable of sustaining long-term civilisational equilibrium. The

classical framework of *rājadharmā* offers a more granular articulation of how such alignment may be sustained in practice.

Beyond the responsibilities of individual rulers, classical Indian political thought also points toward a broader conception that may be described as *rāṣṭradharma*: the ethical obligations associated with preserving the integrity, continuity, and flourishing of the political community itself. Whereas *rājadharmā* concerns the disciplined exercise of authority, *rāṣṭradharma* concerns the conditions under which a society sustains cohesion across generations despite changing political actors and institutional arrangements. The relationship between the two is dynamic rather than hierarchical. Political authority derives legitimacy from serving the enduring well-being of the polity, while the continued vitality of the polity depends upon the ethical conduct of those entrusted with authority. In contemporary constitutional terms, *rāṣṭradharma* may be understood not as nationalism or ideological conformity, but as the shared responsibility of institutions and citizens alike to preserve the civilisational, social, and constitutional conditions that make ordered liberty possible.

In comparative perspective, the United States represents the oldest continuous modern constitutional democracy, while India reflects one of the world's most enduring civilisational traditions of *dhārmic* reflection on governance. The interaction between these trajectories highlights a deeper continuity: while institutional design has evolved in modernity, the ethical questions surrounding the restraint and direction of power have been explored across millennia.

To operationalise these insights in a pluralistic age, we must view *dharma* not as a relic of antiquity, but as a 'civilisational grammar' of sustainability. Just as grammar provides the rules that make speech intelligible without dictating what must be said, *dharma* provides the ethical constraints that make liberty possible without dictating how a life must be lived. The endurance of federal democracies depends upon such ethical grammars of restraint; without them, political discourse risks devolving into increasingly procedural management of competing claims and interests.

The central argument advanced here is therefore not that premodern political forms should replace constitutional democracy, but that constitutional systems alone are insufficient to secure the long-term preservation of liberty. Constitutional systems can distribute authority and restrain its concentration, yet no architecture of freedom can endure without accompanying disciplines of ethical self-restraint operating within both persons and institutions. The endurance of liberty ultimately depends upon the moral and civilisational ecologies within which freedom, power, and desire are formed, moderated, and directed toward sustainable equilibrium.

Finally, the cultivation of these ethical disciplines is not merely an intellectual exercise but an aesthetic one, requiring a refined perception of proportion and harmony, a concept explored in the Appendix through the lens of *Rasa* practice.

Appendix:

Rājadharma as Rasa in Nāṭya Practice

This paper has examined *rājadharma* as a framework for the disciplined exercise of power within systems of governance. Within the practice of *nāṭya*, however, these principles do not remain conceptual. They are experienced, refined, and transmitted through the emergence of *rasa*.

Nāṭya is not merely the representation of *bhāva* (emotion), but the cultivation of a shared field of experience in which individual expression is transformed into something universally accessible. In this transformation, the disciplined ordering described in *rājadharma* finds its experiential counterpart.

The four dimensions of *rājadharma* may be understood, in the language of *nāṭya*, as conditions for the emergence of *rasa*:

1. Institutional Dharma as the Ground of Rasa

The elements of performance, namely, *tāla*, *laya*, gesture, space, and coordination, constitute the structured field within which expression unfolds. These correspond to the objective conditions that make aesthetic experience possible.

Without such discipline, expression remains fragmentary and cannot stabilise into *rasa*.

2. Ethical Dharma as the Purification of Bhāva

For *rasa* to arise, *bhāva* must be rendered with sincerity, restraint, and clarity. When expression is driven by ego or excess, it remains personal and does not become shareable. Ethical discipline refines emotion, allowing it to move from the private to the universal.

3. Crisis Dharma as the Testing of Presence

Moments of disruption within performance test the practitioner's capacity for awareness. It is in such moments that the difference between mechanical execution and living practice becomes visible. The ability to respond without disturbance preserves continuity, allowing the aesthetic experience to remain intact.

4. Inner Dharma as the Condition of Transcendence

Rasa arises most fully when the performer is not absorbed in self-display but rests in a state of inner alignment. This inward discipline corresponds to the orientation toward *mokṣa*, in which attachment to outcome recedes. In such a state, expression becomes transparent, and the experience deepens.

When these dimensions align, the performance ceases to be the expression of an individual and becomes a shared experience. This is the condition described in aesthetic theory as *sādhāraṇīkaraṇa*, where emotion is no longer owned by the performer or the spectator but becomes collectively accessible.

What emerges in such moments is not merely emotion, but *rasa*, felt by all, possessed by none.

In this sense, *nāṭya* enacts the same principle that *rājadharmā* seeks to sustain in governance: the ordering of power, intention, and restraint into a condition of

equilibrium. Where such alignment is sustained, both political order and aesthetic experience acquire coherence, continuity, and depth.

The symbolism of Naṭarāja provides a striking visual expression of this insight. The cosmic dance does not represent the negation of power but its disciplined ordering. Creation and destruction, movement and stillness, freedom and restraint coexist within a larger equilibrium. The image suggests that enduring order emerges not through the suppression of dynamic forces but through their harmonious integration. In this respect, Naṭarāja may be understood as a civilisational metaphor for the principle explored throughout this paper: liberty is sustained not by the absence of power, desire, or agency, but by their ethical ordering within a framework of *dharma*.